

FEDERAL MARITIME COMMISSION

LOGFRET, INC., *Complainant*

v.

KIRSHA, B. V., LEENDERT JOHANNES BERGWERFF A/K/A
HANS BERGWERFF, LINDA SIEVAL, *Respondents*.

DOCKET NO. 18-10

Served: December 19, 2018

BEFORE: Erin M. WIRTH, *Administrative Law Judge*.

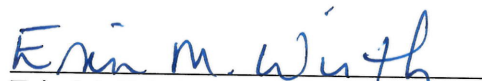
ORDER REQUIRING ANSWER

On November 16, 2018, the Commission issued a notice of filing of complaint and assignment for this proceeding. Commission regulations require the Respondents to file an answer within twenty-five days of service of the complaint. 46 C.F.R. § 502.62(b). No answer has been received to date.

Respondents sent an email to this office, which has been forwarded to the Office of the Secretary and to the Complainant. The email acknowledges receipt of the complaint and raises an issue with docket. The email does not include any of the information required to be included in an answer and will not be accepted as an answer.

Sua sponte, the Respondents will be provided additional time to file their answer. This will allow them to obtain legal advice or review the Commission's website, which includes links to Commission Rules and a docket which can be reviewed to see how other cases are handled. See: www.fmc.gov/resources/attorneys_litigants.aspx. Respondents' answer must be filed by January 9, 2019, or they will be in default. 46 C.F.R. § 502.65.

If Respondents do not file their answer by January 9, 2019, they may be found responsible for the requested reparations of \$2,000,000 by default. If they fail to file their answer, Complainant should file a motion seeking a default decision by January 16, 2019, which should include evidence supporting the complaint's allegations and evidence of the damages claimed. If Respondents file an answer, the parties should file their joint status report, as explained in the initial order, by January 23, 2019.


Erin M. Wirth
Administrative Law Judge